

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 16
JUDICIAL OFFICER: BENJAMIN T REYES II
HEARING DATE: 08/05/2026

**INSTRUCTIONS FOR CONTESTING TENTATIVE RULINGS
IN DEPARTMENT 16**

The tentative ruling will become the ruling of the Court unless by 4:00 P.M. of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 16 (Dept16@contracosta.courts.ca.gov) to request argument and **must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why.** Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00 P.M. of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

The prevailing party must prepare and e-file a proposed order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER
NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://www.zoomgov.com/j/1619504895?pwd=NOV1N3JFRnJ0TEVoSDNrTGRzakF3UT09>

ID: 161 950 4895

Password: 812674

Courtroom Clerk's Session

1. 9:00 AM CASE NUMBER: C25-01976
CASE NAME: CASSIE LANCASTER VS. DISCOVERY BUILDERS, INC.
***FURTHER CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This Case Management Conference (CMC) trails the hearing for Line 8. If the tentative ruling is uncontested, this CMC is continued to December 4, 2026 at 8:30 a.m. in Dept. 16. The Parties are ordered to meet and confer to discuss ADR and to file a CMC statement.

2. 9:00 AM CASE NUMBER: C25-03287
CASE NAME: JOSEPH WAINAUSKAS VS. DAVE & BUSTER'S MANAGEMENT, LLC
***CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This Case Management Conference (CMC) trails the hearing for Line 10. If the tentative ruling is uncontested, this CMC is continued to December 4, 2026 at 8:30 a.m. in Dept. 16. The Parties are ordered to meet and confer to discuss ADR and to file a CMC statement.

3. 9:00 AM CASE NUMBER: C25-03352
CASE NAME: LUIS GOMEZ PASTRANA VS. DCS TRANSPORTATION
***CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This Case Management Conference (CMC) trails the hearing for Line 10. This CMC is continued to September 16, 2026 at 9:00 a.m.

4. 9:00 AM CASE NUMBER: MSC21-00659
CASE NAME: TAJ LOCKETT VS BROKER SOLUTIONS INC
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO SPECIAL INTEROGS NO. 1-3**
FILED BY: LOCKETT, TAJ
TENTATIVE RULING:

Summary

Plaintiff Taj Lockett ("Plaintiff" or "Lockett"), individually and in her representative capacity, filed this Motion to Compel Defendant New American Funding LLC's ("Defendant" or "NAF") Further Responses to Special Interrogatories Nos. 1-3 and for sanctions in the amount of \$14,310. As set forth below, this motion is **granted** in part and **denied** in part.

Background

Plaintiff Taj Lockett commenced this Private Attorneys General Act ("PAGA") action against her former employer New American Funding, LLC ("NAF"), alleging systematic violations of Labor Code section 2751(a). That statute requires commission contracts to be in writing and set forth the method by which commissions are computed and paid. Lockett contends that NAF's commission plans fail to disclose the "lean in" policy, whereby loan officers may reduce customer costs by accepting a commensurate reduction in their commissions. She seeks to represent a class of "aggrieved employees" defined as all persons employed by NAF in California as loan officers or their functional equivalent from September 6, 2019 to the present, estimated at 3,068 individuals.

Following the United States Supreme Court's decision in *Viking River Cruises, Inc. v. Moriana*, [citation omitted] the parties arbitrated Lockett's individual PAGA claims. In August 2024, Arbitrator Brian C.